

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	30-07-2026 11:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	30-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Communications
विभाग का नाम / Department Name	Department Of Telecommunications (dot)
संगठन का नाम / Organisation Name	Bharat Sanchar Nigam Limited Portal(bsnl)
कार्यालय का नाम / Office Name	Circle Office Bsnl Shimla H.p
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id :hp_admin@bsnl.co.in Buyer Email id: kamalkishor1997.bsnl@nic.in
कुल मात्रा / Total Quantity	190
वस्तु श्रेणी / Item Category	All in One PC (V2) (Q2)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)	47 Lakh (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)

बिड विवरण/Bid Details	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	2
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन / Past Performance	80 %
बिड से रिवर्स नीलामी सक्रिय किया/ Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/ RA Qualification Rule	H1-Highest Priced Bid Elimination
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/ Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	15694000
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	392350

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

A.O(Claim)

O/o CGMT BSNL HP Circle, Block no.11, SDA Complex, Kasumpti, Shimla
(Accounts Officer)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25
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ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023. [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

7. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned

Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

8. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

9. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 80% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

10. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

All In One PC (V2) (190 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Description	Description of store	All in One Personal Computers consist of a Mouse, Keyboard, Display with Web camera, inbuilt/integrated microphone array and speakers, an internal CPU with connection cables and power adapter with 1 year standard warranty

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Processor Number	Intel Core i5-13500T, Intel Core i5-14500T, Intel Core i5-14400, Intel Core i5-13600T, Intel Core i7-13700T, Intel Core i9 12900T, Intel Core i7-12700, Intel Core i7-14700T, Intel Core i5-13500, Intel Core i5-14500, Intel Core i9-12900, Intel Core i7-13700, Intel Core i7-14700, Intel Core i9-13900T, Intel Core i9-13900, Intel Core Ultra 5-235, Intel Core Ultra 7-265, Intel Core i5 14600T, Intel Core Ultra 5 235T, Intel Core Ultra 5 245, Intel Core Ultra 5 245T, Intel Core Ultra 9 285 Or higher
Input Devices	Mouse Connectivity	Wired, Wireless Or higher
	Keyboard Connectivity	Wired, Wireless Or higher
Operating System	Operating System (Factory Preloaded with Certification)	Windows 11 Professional
Memory	Type of RAM	DDR4, DDR5 Or higher
	RAM Size (GB)	16
Storage	Type of Storage Installed with the System	NVMe SSD
	Storage Capacity (in GB)	512
Display	Display Size - Diagonal (in Inches)	58.1 - 63 (22.87" - 24.8")
	Panel Technology	In Plane Switching (IPS) Or higher
Ports	Number of Ports	1-HDMI, 1-DP, 1-USB 3.0 TYPE A, 2-USB TYPE C, Universal Audio Jack, 1- RJ-45 (10/100/1000 Ethernet Port), 1-USB 3.1 Gen 1 TYPE A, 2-USB 3.0 TYPE A, 2-USB 3.1 Gen 2 TYPE A, 2-USB 3.1 Gen 1 TYPE A, 1-USB 3.1 Gen 1 TYPE C
Generic	Stand	Height Adjustable

Additional Specification Parameters - All In One PC (V2) (190 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
Availability of Speakers integrated with Monitor	YES
On Site OEM Warranty	3 Years or higher
Anti-virus	Three year or Higher pre-installed
Wi-Fi & Bluetooth	Inbuilt Wi-Fi & Bluetooth
MS Office	MS Office 2024 with Lifetime validity

* Bidders offering must also comply with the additional specification parameters mentioned above.

इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Ajay Kumar	171009,O/o Chief General Manager Telecom, BSNL, Block No. 11, SDA Complex Kasumpti, Shimla	60	45
2	Vijay Kumar Chauhan	177001,O/O GM BA BSNL HAMIRPUR , BHOTA CHAUK, HAMIRPUR (HP)	22	45
3	Prakash Chand	175001,O/O GM BA BSNL,Tarna Hills,Mandi,Distt. Mandi (HP)	22	45
4	Ritu Jain	173212,O/O GMTD BSNL Saproon Road SOLAN (HP).	28	45
5	Neeraj Sharma	171009,BLOCK No. 35,SDA Complex,Kusumpatti,Shimla HP	25	45
6	Kishan Lal	176215,KISHAN LAL AGM CFA O/O GMTD DHARAMSHALA DISTT. KANGRA HP-176215.	33	45

Special terms and conditions-Version:6 effective from 15-04-2026 for category All in One PC (V2)

1.

For Buyers:		
1.	Product Verification	A unique device serial number shall be provided by the seller at the time of supply, which is mentioned on the product. The buyer/consignee shall be able to verify the complete product details, including configuration, through the OEM website. The buyer/consignee should be able to perform these verifications without needing to create an account on the OEM website.

2. Operating System

- a. There is no requirement that the OEM of the All in One PC should be a device partner of Microsoft or hold a valid authorisation from Microsoft
- b. Microsoft OS may be sourced directly from Microsoft by OEMs holding device partner status, and those not holding device partner status may source from authorized distributors,i.e., Ingram/Reddington and their authorized channel partners.
- c. Buyers may ensure that the authorisation from Microsoft shall not be made a mandatory requirement in bids.
- d. If supplies are made as per brands of OEMs who are global device partners, then the serial number of the machine supplied can be used to check the details of the product from the website of the OEM.
- e. In the case of local device partners of Microsoft, OS details such as the digital key number should be produced with supplies, and the buyer may verify them from Microsoft.
- f. In case of other OEMs who are sourcing from authorized distributors of Microsoft, Reddington, or Ingram, a copy of the invoice which contains the relevant serial number of Windows OS shall be submitted with supplies, and the buyer/consignee can verify the same from the OS server website or by telephone, or both.
- g. In respect of verification of OS, the consignee shall take necessary steps at the time of acceptance. For device partner machines, buyers can check the All in One PC OEM website to verify the OS by entering the PC's serial number and part code number. For entities that are not device partners and source OS from distributors' networks, they may verify the serial number through the Microsoft website or by telephone, or both.
- h. In case the product offered is with a DOS or Linux operating system, such verification of OS shall not be applicable.
- i. Buyer shall request for Windows Hardware Compatibility Certificate for

		window operating system to ensure the supply hardware is compatible with Windows operating system
3.	Requirement of OEM logo	Buyers are advised to note that incorporating a condition stipulating an OEM logo on the motherboard is restrictive and may not be incorporated into the bids.

4.	Warranty	a. The buyer may ensure that as soon as supplies are received, a request for a warranty certificate is made, along with logging into the OEM website/call center to verify the certificate. b. The product in GeM marketplace (Direct Purchase & L1 purchase) comes with a minimum standard warranty of one year. In case the seller has standard warranty more than one year, the same may be mentioned in the catalogue (including in the model name) and in such case higher warranty offered shall prevail/supersede the minimum one year warranty.
5.	OM related to MII, Local content and MeitY advice on Model technical specifications	Buyers are requested to refer to various OM's pertaining to DPIIT and MeitY, as issued from time to time, while making procurement and follow relevant provisions as applicable.
		Before generating the Consignee Receipt and Acceptance Certificate (CRAC), the consignee may inspect the system condition and verify that it complies with the agreed specifications and configurations. In the case of a large number of units to be procured, then the buyer may opt for bidding and accordingly stipulate conditions regarding installation, inspection by

6.	Check points during Acceptance of Supplies	consignees/inspection agency. Consignees who receive the supplies should be vigilant and should complete checking to ensure that there is no scope for the supply of refurbished products. At the time of receiving supplies, the consignee may adhere to the following to ensure that any discrepancies in supplies can be flagged, taken into account, and reflected while generating the CRAC: i. Packing should be checked properly ii. A warranty certificate from the OEM should be insisted upon and checked. iii. Instruction manuals and the OS installed should be checked. iv. The machine serial number should also be checked through settings and can be verified from the OEM website. The above points are for guidance, and the buyer/consignee may take steps considered suitable by them for checking at the consignee end before acceptance of systems. v. An escalation matrix for customer grievance redressal shall be insisted upon by the buyer from the seller at the time of delivery.
7.	HDD/SSD Storage Retention	Buyer may add their requirement of retention of securely store all Hard Disk Drives (HDDs) or Solid-State Drives (SSDs) used in the All in One PC under ATC clause.
For Sellers:		
1.	OEM Website Link/Part No for product verification	The OEM shall share the OEM website link with the buyer at the time of delivery. The offered model details/configuration should be available on their website. A unique device serial number shall also be provided at the time of supply, which is also mentioned on the product. The buyer/consignee shall be able to verify the complete product details, including configuration, through the shared OEM website link.

2.	Changing or altering the configuration	Seller must refrain from changing or altering the configuration of the factory pre-loaded machine. The machine should be delivered to the Consignee in its original, factory-approved configuration.
3.	Warranty	The seller shall furnish a valid warranty Certificate/Tag from the OEM to the purchaser, guaranteeing the product's coverage under the specified warranty terms. The warranty certificate should be verifiable through the OEM website/customer care center.
4.	Compliance of extended producer's responsibility	With effect from 1.4.23, as per the E-waste rules 2022, EPR registration is mandatory for manufacturing entities. Therefore, all OEMs shall hold valid EPR registration, and the registration number should be reflected in the catalog parameter. OEMs shall ensure compliance with all responsibilities as per EPR registration applicable from time to time.
5.	Mandatory / Statutory requirements as applicable	OEMs shall have to ensure compliance with the mandatory/statutory requirements as per the Government of India Notifications issued from time to time for hardware and software components, as applicable.
6.	Operating System	It shall be the responsibility of OEMs to ensure that supplies are made with genuine operating systems.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. ESTIMATED COST:

Tentative Price per unit (in Rs.) : ₹ 70,000 /-

Total estimated cost of 190 units: ₹1,33,00,000 /-

Total estimated cost of 190 units : ₹ 1,56,94,000 /-

2. TECHNICAL SPECIFICATIONS

Specification	Specification Name	Requirement
Processor	Processor Make	Intel
	Processor Generation	13 or higher
	Number of Cores per Processor	10 or higher
	Processor Description	Intel Core i5 13500 or higher
	Processor Type	Intel Core i5 13500 or higher
	Processor Speed	2.4 GHz or higher
Motherboard	Chipset Series	Intel Q Series or higher
	Chipset Number	Intel Q670 or higher
Operating System	Operating System (Factory Pre-loaded)	Windows 11 Professional or above
Memory	RAM Size (GB)	16 or higher
	RAM Expandability up to (using spare DIMM Slots)	64, 128 or higher
Storage	Type of Drives used to populate internal bays	SSD (NVMe)
	Total SSD Capacity (GB)	512 or higher
	Total SSD Capacity in addition to 8 GB flash (GB)	500, 1000, 2000 or higher
Cabinet	Cabinet Form Factor	ALL IN ONE
Keyboard	Keyboard	Yes
Mouse	Mouse	Yes
Monitor	Monitor Technology	IPS or higher
	LED Backlit Monitor Size (Inches)	21.5 or higher

	Monitor Resolution (Pixels)	1920 x 1200 or higher
Camera	Camera	Yes
Audio	Availability of Speakers integrated with Monitor	Yes
Warranty	On Site OEM Warranty (Year)	3 years or higher

NOTE: In case of any clash/confusion between technical specifications in GeM parameters, above technical parameters of ATC will prevail.

2.1 **ADDITIONAL SPECIFICATIONS:**

Specification Parameter Name	Bid Requirement (Allowed Value)
MS Office	MS Office 2024
Wi-Fi & Bluetooth	Inbuilt Wi-Fi & Bluetooth
Number of USB Version 2.0 Ports	3 or Higher
Number of USB Version 3.0/ 3.1/3.2	3 or Higher
Type of Ethernet Ports	10/100/1000 on board Integrated Gigabit Port
Number of HDMI & VGA Ports	01-HDMI & 01-VGA
Anti-virus	Three year or Higher pre-installed

- A. Software specification:
 - a) Windows 11 Professional or higher should be factory pre-loaded from the OEM. Any deviation in respect of genuineness and authenticity of OS will attract severe penalty on part of the seller as per law of the land and contractual provisions. Sellers are also requested to verify the key number of OS etc. with the server of Microsoft before delivering machines to avoid complexity at a later stage.
 - b) MS OFFICE 2024 with lifetime validity
 - c) Anti-virus for 3 year or more
- B. Warranty period of the supplied product shall be minimum of 3 years from the date of final acceptance of goods at consignee location. OEM warranty certificates must be submitted by the successful bidder at the time of delivery of the goods. Warranty details of the Product Serial Numbers should be reflected in their OEM portal. Onsite support should be provided during warranty period.
- C. OEM must have a facility to download update of device drivers and firmware on its website
- D. Preference will be given to top five IDC (International Data Corporation) rating OEM's.
- E. Security: TPM 2.0 (Discrete), Integrated Intrusion Sensor Must Be Supported By The Supplied systems
- F. The CPU, Power supply, monitor, keyboard, and mouse must be from the same original equipment manufacturer (OEM).

NOTE: Bidders are requested to offer the product strictly as per the specifications mentioned in the bid. Specifications of the offered product not matching with specifications in bid, it shall be liable to rejection. The evaluation of the Bids shall be based on the same.

3. WARRANTY:

On-site OEM Warranty: **3 Years**

- a) If any supplied system goes faulty including OS during warranty period, it will be the responsibility of bidder/ seller to get it repaired/replaced onsite (place of fault) within 48 Hrs. or arrange a standby system with the same/ higher specification from the intimation of fault on email/ phone.
- b) Any expenses incurred in this activity will be borne by the bidder/seller.
- c) If the bidder/seller fails to make the system working within a weeks' time, BSNL will get this work carried out from other vendor/open market at the risk and cost of the bidder/seller.
- d) After completion of warranty period, penalty if any will be recovered from the security deposit amount of the bidder/seller based on the communication done with bidder/seller regarding faults, if any.
- e) Timely servicing/rectification of defects during warranty period: After having been notified of the defects/service requirement during warranty period, seller has to complete the required service/rectification within 48 Hours' time limit. If the seller fails to complete service/rectification with defined time limit, a penalty of 0.5% of unit price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the buyer directly as the buyer shall have a right to recover all such penalty from the performance security (PBG).

4. ELIGIBILITY CRITERIA & DOCUMENTS:

4.1 Major documents to meet Technical requirements:

- i. **Minimum Average Annual Turnover** Of the Bidder for last 3 Years, ending 31st March of the previous financial year i.e. FY 2025-26 should be at least **30 %** of the estimated Bid cost or higher value allowed on GeM Portal. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant/Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid.
- ii. **Past Performance/Experience:** The Bidder or its OEM should have supplied same or similar Category Products for **80%** of bid quantity, in at least one of the last three financial years before the bid opening date to any Central/State Govt. Organization/PSU/ Public Listed Company. The documentary proof consisting of satisfactory work completion certificate by the authorized signatory from concerned Central/ State Govt. Organization / PSU / Public Listed Company or GeM CRAC (Consignee Receipt and Acceptance Certificate) shall be submitted by the bidder. GeM contract without its GeM CRAC will not be considered as valid experience.
- iii. OEM/Manufacturer's Authorization Form (MAF) Certificate.
- iv valid Start-up/MSE Certificate, if applicable.

Note-1: If above required Major documents are not uploaded/submitted on GeM Portal, this shall result in outright rejection of the bid.

Note2: If OEM is bidding, then only the turnover of OEM will be required. If a vendor is participating then turnover of vendor only will be required.

4.2 Additional Documents to Meet Technical Requirement,

- i. ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.
- ii. OEM/Bidder must have a registered office in Himachal Pradesh or Service Center in Himachal Pradesh. Proof for the same is required to be uploaded.

- iii. Data Sheet of the product(s) offered in the bid.
- iv. The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.
- v. Acceptance terms and conditions of BID, as per annexure-F
- vi. Malicious Code Certificate, as per proforma at annexure-G
- vii. GST Certificate of Bidder.
- viii. Bidders and OEM shouldn't be blacklisted-Undertaking Certificate, as per proforma at annexure-E
- ix. Copy of Near Relationship Certificate from all Directors/partners, as per annexure-A
- x. "Microsoft Certification for Windows" should be submitted. Proposed Model No. should be mentioned on the certification report.
- xi. Land border declaration to be uploaded by bidder/OEM as per Compliance of Restrictions under Rule 144(xi) of GFR 2017, as per annexure-D
- xii. TCO 8.0 or higher certification is required. Necessary certificate should be submitted along with the bid.

Note3: All the documents specified above are critical and are to be uploaded on GeM Portal ; special attention of the bidder is invited to the Major documents listed above.

Note4: Bidder must submit an undertaking from OEM regarding Make In India Local Content %age for the offered product. It must be same as Local Content % (MII) mentioned on GeM Portal against the product. If any mismatch is found, the technical bid is liable to be rejected.

Note5:- Any vendor since 01-04-2025 onwards, who participated in the tender for similar type of procurement in H.P circle and fails to obey APO/BID conditions /contractual obligations, is not allowed to participate in the tender. In case he participates, his technical bid will not be evaluated and will be disqualified in technical evaluation.

5. PAYMENT CONDITIONS

Paying authority shall be "AO (Claim) O/o CGMT HP Circle,, Block no-11, SDA complex, Kasumpti, Shimla-171009"

GST Invoice to be submitted to Claim Section within 15 days of the invoice date vide email on aoclaimhpcircle@gmail.com in case of e-invoice (digitally signed) or through hard copy at "AO (Claim) O/o CGMT HP Circle, 4th Floor, Block no-11, SDA complex, Kasumpti, Shimla-171009"

Before generating the Consignee Receipt and Acceptance Certificate (CRAC), the Consignee may inspect the system condition and verify that it complies with the agreed Specifications and configurations and to ensure that there is no scope for the supply of Refurbished products

BSNL will make payment (90% on receipt of goods and its installation, testing of hardware & software by the vendor and acceptance by consignee. 10% after three months of satisfactory performance of product). Payment will be made preferably within 90 days from the date of invoice on submission of bills with complete documents as required in this bid.

For claiming this payment, the following documents are to be submitted along with the bill.

Documents for Initial 90% Payment: Payable against the Original Invoice, GeM CRAC, Inspection Certificate (issued by the BSNL team), Warranty Certificate and any other documents requested by BSNL.

Documents for Balance 10% Payment: To be released upon receipt of a Satisfactory Performance Certificate from the Consignee/User; the seller is responsible for ensuring the supply of this certificate.

- a. The Firm should raise a bill with all mandatory details and disclosures on its letter head and claim amounts & GST should be clearly mentioned.

- b. The GST amount shall be paid only on reflecting the GSTR2.
- c. Income Tax TDS/GST TDS will be deducted as applicable.
- d. In case of any delay as mentioned in Scope of Work, penalty would be as per GeM GTC.

Note:

- 1) If the Bidder fails to furnish necessary supporting documents i.e. GST invoice / Customs invoices etc. and also fails to upload the information on GSTN in respect of the Duties/taxes for which input tax credit is available, the amount pertaining to such Duties/Taxes will be deducted from the payment due to the bidder.
- 2) Tax Amount will be paid to the bidder only after bidder declares the details of the invoices in its return in GSTR1 and GSTR-3 uploaded by the bidder and the same is reflected in GSTR-2A of BSNL on GSTN portal.
- 3) TDS/TCS shall be deducted at the prescribed rate, if any (as the case may be).
- 4) BSNL can adjust/ forfeit Bank Guarantee obtained from the bidder against any loss of input tax credit to BSNL on account of the bidder's default.
- 5) In case BSNL has to pay GST on reverse charge basis, the bidder would not charge GST on its invoices. Further, the bidder undertakes to comply with the provisions of GST law as may be applicable.

6. BID Security/EMD:

The Bid Security/EMD is **2.5%** of the estimated cost of the tender i.e. 2.5% of Rs. 1,56,94,000/- = **Rs. 3,92,350 /-.**

The bidder shall furnish the bid EMD in one of the following ways:-

- a) Demand Draft/Banker's cheque issued by any Nationalized/Scheduled Bank drawn in favour of **'AO(Claim) O/o CGMT HP Circle, Block no-11, SDA complex, Kasumpti, Shimla-171009.**
- b) Fixed Deposit Receipt (FDR) for the specified period, issued by any Nationalized / Scheduled Bank in the name of **'AO(Claim) O/o CGMT HP Circle,, Block no-11, SDA complex, Kasumpti, Shimla-171009'** May also be submitted. The FDR should also be duly endorsed by the bidder in the favour of BSNL. Also the FDR should be in Auto- renewal mode with unlimited or perpetual renewals.
- c) Bank Guarantee from a scheduled bank drawn in favour of **'AGM (MM)) O/o CGMT HP Circle Block no-11, SDA complex, Kasumpti, Shimla-171009'**, BSNL, HP Telecom Circle SHIMLA" payable at SHIMLA which should be valid for 180 days from the tender opening date in the prescribed format.

The MSE (Micro and Small Enterprise) bidders are exempted from payment of Bid Security/ EMD on production of requisite proof in respect of valid certification from MSME for the tendered item. **The latest valid MSE Udyam Registration Certificate should comply with the Gazette of India Notification dated 01.06.2020 regarding criteria for classification of micro, small and medium enterprises.**

Detail for online payment is given below:

1	Beneficiary Name	AO (CLAIM)
2	Beneficiary Address and Email ID	AO (CLAIM) O/o CGMT (BSNL) HP Circle, SDA Complex, Block No.9, KASUMPTI, SHIMLA-171009. Email ID. bsnlfcircle@gmail.com
3	Beneficiary Bank A/c. no.	510101005313741

4	Bank Account type (Saving/Current for cash credit)	Current Account
5	Nine Digit MICR Code of the Bank Appearing on the Cheque Book issued by the bank	171026005
6	Bank Name	UNION BANK OF INDIA SHIMLA
7	Branch Name & Address with Telephone Number	UNION BANK OF INDIA SHIMLA, KASUMPTI Shimla-171009. Telephone No. 0177-2622044, 2621203
8	IFSC (Indian Financial Services Code).	UBIN0905755

In case payment is done online, the bidder needs not to submit any offline document.

7. OFFLINE SUBMISSION:

In case of offline payment of Bid Security / EMD, BG/FDR/Original DD is required to be reached Before the closing date & Time of Tender/Bid in a sealed envelope either in the tender box available in Room No.-202 or through post to AGM (MM) O/o CGMT BSNL HP Telecom Circle, Block no.11, SDA Complex, Kasumpti, Shimla-171009, HP

In case of Non-MSE bidders, online bid will be opened only of those bidders whose offline documents would reach physically as per specified time before tender opening.

8. PERFORMANCE SECURITY

The performance guarantee is **5%** of the approved cost for **42 months**. The proceeds of the performance security shall be payable to the Purchaser as compensation for any loss resulting from supplier's failure to complete its obligations under the contract. No interest shall be paid on performance security amount

- i The performance security Bond shall be in the form of Bank Guarantee issued by a scheduled Bank.
- ii The performance security Bond will be discharged by the Purchaser after completion of the supplier's performance obligations including any warranty obligations under the contract and upon receipt of No Claim/No Dues Certificate from the Nodal Officer/ Officer In-charge of Business Area/ Unit.

NOTE: GeM CONTRACT WILL BE ISSUED ONLY AFTER RECEIVING PERFORMANCE SECURITY & ITS SUCCESSFUL VERIFICATION FROM BANK.

9. FINANCIAL BID EVALUATION

L-1 evaluation will be done on the basis of the Lump sum price quoted by the technically qualified bidders and price breakup will not have any impact on the L-1 discovery.

The Financial evaluation will be done on Price inclusive of GST (Considering 18% GST). Cess or any other charges is not applicable hence quotation of Cess or any other charges is not required. If any issue/conflict arise due to quotation of Cess or any other charges, the bid would be liable to be rejected.

In case, same price (i.e. L1 price) is quoted by multiple bidders, preference will be given to the top five IDC (International Data Corporation) rating OEM's.

In case, same price (i.e. L1 price) is quoted by multiple bidders and all with top five IDC rated OEMs, preference will be given to the one with higher specifications

In case of mismatch between the prices mentioned in the Price breakup format and the Lump sum quoted amount, then Lump Sum amount will prevail. Buyer can ask for the revised breakup from the service provider offline. Service provider has to submit the revised breakup within 3 days, failing which the bid will be rejected without entertaining further correspondence in this regard.

10. Mediation & Resolution of Disputes

10.1 Disputes and Excepted Matters:

10.1.1 All disputes and differences between the parties hereto, as to the construction or operation of this contract, or the respective rights and liabilities of the parties on any matter in question; or any other account whatsoever, but excluding the Excepted Matters (detailed below); arising out of or in connection with the contract, that cannot be resolved amicably between the Contractor and Purchaser/BSNL, shall be hereinafter called the "Dispute". The aggrieved party shall give a 'Notice of Dispute' specifying all points of Dispute/ issue, the amount of any quantified claims citing relevant Contractual clause, and, to the extent possible, an estimate of the monetary value of all other claims, along with supporting documents to the other party, and requesting for invoking the following dispute resolution mechanisms.

10.1.2 After receipt of a 'Notice of Dispute', as above, the parties shall in good faith, make all reasonable efforts, to arrive at a mutually acceptable resolution to the disputes raised in the "Notice of Dispute" in formal meetings(s) between authorized representatives of the parties.

10.1.3 Parties agree that any effort by either party for arriving at the mutually acceptable resolution of the disputes is to be kept confidential by both Parties. Parties also agree to not rely upon any views expressed, admissions or suggestions made, or willingness to enter into a settlement by either party as evidence in any forum / arbitration / court proceeding.

10.1.4 Parties agree that neither party shall be entitled to any claim or compensation for any consequential, indirect or special losses/damages, including loss of profit, loss of production, loss of use, loss of goodwill, loss of reputation, remote damages, loss of business opportunities, loss of employment opportunities, loss of interest including any pre-reference or pendent-lite interest, idling costs of men and machinery, prolongation costs etc., on account of any dispute/ claim raised under the contract. Parties agree that claim for any such amount shall not be considered and shall be void.

10.1.5 In case the parties fail to amicably resolve the disputes between them within 60 days of receipt of "Notice of Dispute" sent under clause 10.1.1 above, the following provisions, as mentioned below, shall follow:

The Dispute shall be resolved without recourse to courts through dispute resolution mechanisms detailed subsequently, in the sequence as mentioned below, and the next mechanism shall not be invoked unless the earlier mechanism has been invoked or has failed to resolve it within the deadline mentioned therein.

1. Senior-Level Negotiation
2. Mediation
3. Litigation

10.2 Excepted Matters:- Matters for which specific provision has been made in any clause of the Contract, and where the decision of BSNL has been stated to be final and binding, shall be deemed as Excepted Matters and shall not be subject to Senior-Level Negotiation, mediation, or arbitration. These shall include, but shall not be limited to, the following:

1. Any controversies or claims brought by a third party for bodily injury, death, property damage or any indirect or consequential loss arising out of or in any way related to the performance of this Contract ("Third Party Claim"), including, but not limited to, a Party's right to seek contribution or indemnity from the other Party in respect of a Third-Party Claim.
2. Issues related to the pre-award tender process or conditions.
3. Issues related to ambiguity in contract terms shall not be taken up after a contract has been signed. All such issues should be highlighted before the signing of the contract by the contractor.

4. Any claim, difference or dispute relating to, connected with or arising
 - i. out of BSNL's decision to initiate proceeding for suspension or banning, or decision to suspend or to ban business

ess dealings with the Bidder / Contractor;

ii. Any claim, difference or dispute relating to, connected with or arising out of BSNL's decision under the provisions of Integrity Pact executed between BSNL and the Bidder / Contractor;

iii. Any dispute pertaining to insolvency and bankruptcy, property laws.

5. Provisions incorporated in the contract, which are beyond the purview of BSNL or are in pursuance of policies of Government, including but not limited to

i. Provisions of restrictions regarding local content and Purchase Preference to Local suppliers in terms of Make in India policy of the Government.

ii. Provisions regarding restrictions on Entities from Countries having land-borders with India in terms of the Government's policies in this regard

iii. Purchase preference policies regarding MSEs and Start-ups

10.3 Senior-Level Negotiation After exhausting efforts to resolve the Dispute with the Purchaser/BSNL executing the contract on behalf of the Procuring Entity, the contractor shall give a 'Notice of Senior-Level Negotiation' specifying the matters which are in question, or subject of the dispute or differences indicating the relevant contractual clause, as also the amount of claim item-wise to CMD BSNL or CGM of the BSNL circle as the case may be, or any other authority mentioned in the contract (hereinafter called the "Negotiating Authority") for invoking resolution of the dispute through Senior-Level Negotiation. During such Senior-Level Negotiation, the Negotiating Authority shall give adequate opportunity to the contractor to present his case. Within 60 days after receiving the representation, the Negotiating Authority shall record and communicate in writing the outcome of such negotiations on all matters referred to him. It is clarified that Senior-Level Negotiation is an internal bilateral settlement mechanism intended to facilitate resolution of disputes at an elevated management level and does not constitute a judicial or quasi-judicial adjudication. The parties shall not initiate, during the Senior-Level Negotiation proceedings, any conciliation or arbitral or judicial proceedings in respect of a dispute that is the subject matter of the Senior-Level Negotiation proceedings. If not satisfied by the outcome in Senior-Level Negotiation, or if the Negotiating Authority fails to notify his decision within the abovementioned time-frame, the contractor/ purchaser may proceed to invoke the process of Mediation as follows.

10.4 Mediation of disputes

1. For cases with dispute amount more than 10 Crores, Mediation shall be conducted through the mediation scheme framed by the Department of Telecommunications, Government of India vide OM No. 1-1/4/2024-Law (I) dated 22.11.2024, comprising, where considered appropriate, a retired judge, a retired senior officer, and/or a technical expert ("Mediation Scheme").

2. For cases with dispute amount less than 10 Crores, the mediation process will be adopted as per institutional mediation provisions defined under the Mediation Act, 2023.

3. The cost of the mediation shall be shared equally by the parties unless otherwise agreed.

4. If the parties reach an agreement on a dispute settlement, they shall draw up a written settlement agreement duly signed by the parties and Mediator. When the parties sign the settlement agreement, it shall be final and binding on the parties. The dispute shall be treated as resolved on the date of such agreement. It is clarified that mediation is a voluntary and confidential process in which the mediator acts solely as a facilitator and shall not have authority to impose any decision or determination on the parties.

5. The parties shall not initiate, during the mediation proceedings, any arbitral or judicial proceedings in respect of a dispute that is the subject matter of the mediation proceedings. 6. Termination of Mediation: Disputes shall remain alive if the mediation is terminated as follows:

(a) By written declaration of the mediator, after consultation with the parties, to the effect that further efforts at mediation are no longer justified, on the date of such declaration; or

(b) By a written declaration of any party to the mediator, before the signing of settlement agreement by both sides, to the effect that the mediation proceedings are terminated, on the date of such declaration; or

(c) If the parties fail to reach an agreement on a settlement of the dispute, within stipulated time from the appointment of mediator.

On termination of Mediation, if the dispute is still alive, the aggrieved party shall be free to invoke litigation

10.5 Dispute Settlement in case of the disputes between two Central Public Sector Enterprises or with any government body, the following shall apply: In case of any dispute between BSNL and another Central Public Sector Enterprise (CPSE), or between BSNL and a Government Department/Organization (excluding disputes involving Railways, Income Tax, or Customs & Excise), the dispute shall be referred for resolution through the Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) in accordance with DPE OM No. 05/0003/2019-FTS-10937 dated 14.25.2022. The decision of AMRCD shall be final and binding on both parties, and no arbitration or court proceedings shall be initiated until the said mechanism is exhausted.

10.6 Cases covered under the Micro, Small and Medium Enterprises Development (MSMED) Act, 2006. In disputes involving registered MSMEs, reference to the Micro and Small Enterprises Facilitation Council (MSEFC) is mandatory under Section 18 of the said Act. Such disputes are to be first taken up for conciliation and, in the event of failure thereof, arbitration is automatically triggered as per the statutory process

11. COURT JURISDICTION:

a. Any dispute arising out of the tender/ bid document/ evaluation of bids/ issue of APO shall be subject to the jurisdiction of the competent court at the place from where the NIT/ tender has been issued.

b. Where a contractor has not agreed to Mediation, the dispute/claims arising out of the Contract/PO entered with him shall be subject to the jurisdiction of the competent Court at the place from where Contract/ PO has been issued. Accordingly, a stipulation shall be made in the contract as under.

“This Contract/PO is subject to jurisdiction of Court at SHIMLA (HP) only

12. In case of any queries, the details of officers:

BSNLContact-1	
Contact Person	Shri Kamal Kishor, AGM(MM)
Telephone	94160-10410 [Between 10:30 hrs. to 17:00 hrs. on working days]
E-mail ID	agmcfa.cohp@gmail.com

BSNLContact-2	
Contact Person	Shri Raj Kumar, DGM(CFA)
Telephone	9417242200 [Between 10:30 hrs. to 17:00 hrs. on working days]
E-mail ID	raj0101@bsnl.co.in

13. Bidders are to submit the checklist and therein required documents as per below attached file (in buyer uploaded ATC document). The proforma of the documents are also there.

14. **An Advance Purchase Order will be issued to the successful bidder seeking its acceptance and would be required to submit Performance Bank Security/Guarantee within a allotted time period. Only upon receiving PBG & its verification from bank, GeM contract will be issued.**

CHECKLIST OF DOCUMENTS:

Please ensure that all documents are fully authenticated by the Authorized Signatory with his signature with an official seal.

Offer is liable to be rejected, if enclosed documents are not authenticated. Documents Forming Part Of The Bid:-

S. No.	Item Name	Submitted/Not Submitted (If Not Applicable, reason in brief)
1	Experience Certificate Proof	
2	Scanned copy of the EMD document (as per format at Annexure-B) i.e. Non-MSE Bidders have to submit Original DD/ Bankers cheque / FDR insurance surety bond/BG(including e-BG)/ proof of payment if paid through NEFT/RTGS against bid security/EMD	
3	Micro and Small Enterprise (MSE) bidders should submit Self attested certificate of their valid Udyam Registration Certificate indicating URN (Udyam Registration Number) issued from MSME, in order to avail the benefits available to MSEs as contained in Public Procurement Policy for MSEs. URN certificate should broadly cover the Equipment/services offered in Tender.	
4	copy of PAN number of bidder	
5	Turnover Proof of participating bidder for last three completed years (If applicable).	
6	Copy of the GSTIN Registration Certificate OEM/authorized dealer	
7	Service Centre List	
8	Service & Support	
9	OEM/Manufacturer Authorization Form/Certificate	
10	Additional Documents as mentioned in at clause 4.2 of ATC	
11	Data sheet of the offered product	
12	Signed Bid document (on each page by the bidder)	
13	Near Relationship Certificate as per Annexure-A	
14	Declaration for Bordersharing w.r.t. Rule 144(xi) to GFR 2017 as per Annexure-D	

15	Undertaking regarding non-blacklisting as per proforma at Annexure-E	
16	Undertaking & Declaration as per proforma at Annexure-F	
17	Malicious code certificate as per proforma at Annexure-G	
18	Any other document required in bid	
19	Checklist duly signed & filed by the bidder	

For and on behalf of M/s (Insert Name of Bidding Company)

.....

Signature and Name of the Authorized signatory of the Company rubber stamp/seal

Place:..... Date:.....

ANNEXURE-A

(FORMAT OF NEAR RELATIONSHIP CERTIFICATE)

*I.....s/o.....r/o..... hereby certify that none of my relative(s) as defined in the tender

Document is/are employed in any BSNL Unit as defined in the clause in the Tender Enquiry/ GeM bid id _____, on Near relationship.

OR

*Following are the details of near relatives working with the BSNL.

Sr. No.	Name of Relative	Designation	Name of Unit (office & section of BSNL) where working

--	--	--	--

*Strike off whichever is not applicable.

In case at any stage, it is found that the information given by me is false/incorrect, BSNL shall have the absolute right to take any action as deemed fit/without any prior intimation to me.

Signature of the Proprietor/Partners/Directors of the tenderer entity

With date and seal

NOTE:

1. The bidder should give a certificate that none of his/her near relative, as defined below, is working in the BSNL **units***
2. In case of bidder being proprietorship firm, this certificate will be given by the proprietor. For partnership firm, the certificate will be given by all the partners.

In case of bidder being Company/Limited company the certificate will be given by all the Directors of the company, but excluding following:

- a) Government of India/Financial institution nominees and independent non-Official part time Directors, appointed by Govt. of India or the Governor of the state and
- b) Full time Directors of PSUs, both Central and State

3. Due to any breach of these conditions or incorrect declarations by the bidder [Company or firm or any other person], the tender/bid submitted will be cancelled and Bid Security will be forfeited at any stage, whenever it is noticed and BSNL will not pay any damage to the company or firm or the concerned person.

4. ***Unit**, shall be taken as following:

- (a) In case of any near relative of the bidder being non-executive employees, the "BSNL unit" is defined as "Business Area (BA)".
- (b) In case of any near relative of the bidder being executive (upto AGM/STS level), the "BSNL unit" is defined as "BSNL Circle".
- (c) In case of any near relative of the bidder being higher executive (DGM/JAG or higher), "BSNL unit" is defined as "BSNL as a whole".

5. The near relatives for this purpose are defined as:-

- (a) Members of a Hindu undivided family.
- (b) They are husband and wife.
- (c) The one is related to the other in the manner as father, mother, son(s) & Son's wife (daughter in law), Daughter(s) and daughter's husband (son in law), brother(s) and brother's wife, sister(s) and sister's husband and (brother in law).

Annexure-B

Performa for the BID SECURITY/ EMD Guarantee

(To be typed on Rs.100/- non-judicial stamp paper)

Sub: Bid Security/EMD guarantee.

Whereas M/s R/o
..... (Hereafter referred to as Bidder) has approached us for giving Bank Guarantee of
Rs. /- (hereafter known as the "B. G. Amount") valid up to
...../...../20..... (hereafter known as the "Validity date") in favour of AGM(MM), O/o CGM, BSNL, HP Telecom
to
Circle, Shimla (Here after referred as BSNL) for participation in
the tender of work of

..... vide tender/bid no.

Now at the request of the Bidder, We Bank
..... Branch having
..... (Address) and Regd. office address as

...
.....
.....

... (Herein after called "the Bank") agrees to give this guarantee as herein after contained:

2. We the Bank do hereby undertake to pay the amounts due and payable under this guarantee without any demurrer, merely on a demand from the BSNL stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by the BSNL by reason of breach by the said bidder(s) of any of terms or conditions contained in the said Agreement or by reason of the bidder (s) failure to perform the said Agreement. Any such demand made on the bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee where the decision of the BSNL in these counts shall be final and binding on the bank. However, our liability under this guarantee shall be restricted to an amount not exceeding the "B. G. Amount".
3. We undertake to pay to the BSNL any money so demanded notwithstanding any dispute or disputes raised by the bidder(s) in any suit or proceeding before any court or tribunal relating there to our liability under this present being absolute and unequivocal. The Payment so made by us under this bond shall be valid discharge of our liability for or payment there under and the bidder(s) shall have no claim against us for making such payment.
4. We the Bank further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the dues of the BSNL under or by virtue of the said Agreement have been fully paid and its claims satisfied or discharged or till BSNL Certifies that the terms and conditions of the said Agreement have been fully and properly carried out by the said bidder(s) and accordingly discharge this guarantee. Unless a demand or claim under this guarantee is made on us in writing or before the expiry of Validity date from the date hereof, we shall be discharged from all liability under this guarantee thereafter.
5. We the Bank further agree with the BSNL that the BSNL shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Agreement or to extend time of performance by the said bidder(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the BSNL against the said bidder(s) and to forbear or enforce any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said Bidder(s) or for any forbearance, act or omission on the part of the BSNL or any indulgence by the BSNL to the said bidder(s) or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.

6. Notwithstanding anything herein contained;

- (a) The liability of the Bank under this guarantee is restricted to the "B.G. Amount" and it will remain in force up to its Validity date specified above.
- (b) The guarantee shall stand completely discharged and all rights of the BSNL under this Guarantee shall be extinguished if no claim or demand is made on us in writing on or before its validity date.

7. In case BSNL demands for any money under this bank guarantee, the same shall be paid through banker's Cheque in favour of "**AO (Claim) , O/o CGM Telecom, HP Circle, Shimla payable at Shimla.**"

8. The Bank guarantees that the below mentioned officer who has signed it on behalf of the Bank has authority to give this guarantee under its delegated power.

Place:

Date: (Signature of the Bank Officer)

Rubber stamp of the bank

Authorized Power of Attorney Number Name

of the Bank officer: Designation:

..... Complete Postal address of

Bank Telephone Numbers

.....

Principal and to forbear or enforce any of the terms and conditions relating to the said tender agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said **Principal** or for any forbearance, act or omission on the part of the BSNL or any indulgence by the BSNL to the said **Principal** or by any such

Annexure-C

Pro-forma of Performance Bank Guarantee (PBG)

(To be typed on non-judicial stamp paper of appropriate value)

Dated: _____

Performance Bank Guarantee (PBG)

Whereas <Contract awarding authority> (hereinafter referred to as BSNL) has issued an Award Letter no. Dated/...../20... for awarding

the work of Optical Fibre Cable Laying work to M/s

.....

(hereafter referred to as "Contractor") and the BSNL has asked them to submit a performance bank guarantee in favour of O/o of Rs. /-(hereafter referred to as "PBG. Amount") valid up to/...../20... (hereinafter referred to as "Validity

Date"). Now at the request of the Contractor, We

Bank

.....Branch having
..... (Address) and Regd. office address as
.....
... (Hereinafter called „the Bank”) agreed to give this guarantee as hereinafter contained:

1. We, “the Bank” do hereby undertake and assure to the BSNL that if in the opinion of the BSNL, the Contractor has in any way failed to observe or perform the terms and conditions of the said agreement or has committed any breach of its obligations there-under, the Bank shall on demand and without any objection or demur pay to the BSNL the said sum limited to PBG Amount or such lesser amount as BSNL may demand without requiring BSNL to have recourse to any legal remedy that may be available to it to compel the Bank to pay the same.

2. Any such demand from the BSNL shall be conclusive as regards the liability of Contractor to pay to BSNL or as regards the amount payable by the Bank under this guarantee. The Bank shall not be entitled to withhold payment on the ground that the Contractor had disputed its liability to pay or has disputed the quantum of the amount or that any arbitration proceeding or legal proceeding is pending between Contractor and BSNL regarding the claim. Liability of the bank under this present being absolute and unequivocal.

3. We, the Bank further agree that the guarantee shall come into force from the date of its issue and shall remain in full force and effect up to its Validity date.

4. The Bank further agrees that the BSNL shall have the fullest liberty without the consent of the Bank and without affecting in any way the obligations hereunder to vary any of the terms and conditions of the said agreement or to extend the time for performance of the said agreement from any of the powers exercisable by BSNL against the Contractor and to forebear to enforce any of the terms and conditions relating to the said agreement and the Bank shall not be relieved from its liability by reason of such failure or extension being granted to Contractor or through any forbearance, act or omission on the part of BSNL or any indulgence by BSNL to Contractor or any other matter or thing whatsoever which under the law relating to sureties would but for this provision have the effect of relieving or discharging the guarantor.

5. Notwithstanding anything herein contained; (a) The liability of the Bank under this guarantee is restricted to the PBG Amount and it will remain in force up to its Validity date. (b) The guarantee shall stand completely discharged and all rights of the BSNL under this Guarantee shall be extinguished if no claim or demand is made on us in writing on or before its validity date.

6. In case BSNL demands for any money under this bank guarantee, the same shall be paid through Banker's Cheque in favour of **AO (Claim) , O/o CGM Telecom, HP Circle, Shimla.**

7. The Bank guarantees that the below mentioned officer who have signed it on behalf of the Bank have authority to give this guarantee under its delegated power.

Place: Date:

(Signature of the Bank Ohe bank

Authorized Power of Attorney Number:..... Name of the Bank officer:..... Designation:
..... Complete Postal address of Bank: Telephone Numbers..... Fax numbers
.....

Annexure-D

Performa/Declaration for Bordersharing w.r.t. Rule 144(xi) to GFR 2017

The bidder must comply with the restrictions under Rule 144(xi) of the General Financial Rules (GFRs) 2017 and amendments made from time to time. Any bidder from a country which shares land border with India will be eligible to bid if the bidder is registered with the competent authority as specified in Annexure-I of OM bearing No. 7/10/2021-PPD (1) Dated 23.02.2023 issued from Department of Expenditure, Ministry of Finance. The bidders shall submit an undertaking as per Format (Annexure-A) in this regard. [For details OM bearing No. 7/10/2021-PPD (1) dated 23.02.2023 issued by Department of Expenditure Public Procurement Division may be referred.] Format as under:

Certificate to be submitted by Bidders (On Company's Letter Head)

Reference 1 : BSNLTender Enquiry No..... issued on..... Reference 2: Department of Expenditure Office Memorandums (OMs) No. 7/10/2021-PPD (1) Dated 23.02.2023.

I, in capacity of authorized signatory of M/s..... (Name of the company--) having Regd. office at..... being a participant bidder in BSNLT. E-cited at reference 1 above, do hereby declare that I have read and understood all the clauses regarding Restrictions under Rule 144(xi) of the General Financial Rules (GFRs) 2017 on grounds of Defense of India and National Security issued vide OM cited at reference 2 above, on procurement from bidders from a country or countries which share a land border with India. It is declared that we fulfill all the requirements in this regard and are eligible to be considered for the Tender Enquiry under reference 1 above. Further, we undertake that we will also abide by all the requirements of cited OMs during the entire contract period.

(Name of the authorized signatory)

Signature

Designation in Company Seal / Stamp of Company

Counter signed by Company Secretary of the Company with seal / stamp.

Annexure-E

Non-blacklisting proforma

(On company letter head)

To,

Tendering Authority BSNL

We confirm that our Company _____ as on date of submission of the proposal has not been blacklisted by any Central /State Government/GST Authority/PSU entity in India for corrupt, fraudulent or any other unethical business practices.

Further, in case our Company gets black-listed by GST Authority during the tenure of BSNL contract due to any default, no loss of Input Tax credit will be borne by BSNL.

(Authorized Signatory) Signature:

Name:

Designation:

Address:

Seal

Annexure-F

UNDERTAKING & DECLARATION

For understanding the terms & condition of Tender & Spec. of work

a) Certified that:

I/ We have read, understood and agree to comply with all the terms and conditions, specifications included in the tender/bid documents & offer to execute the work at the rates quoted by us in the tender form.

1. If I/ We fail to enter into the agreement & commence the work in time, the EMD/SD deposited by us will stand forfeited to the BSNL.

2. I/we declare that that there is no addition/ deletion /corrections have been made in the downloaded tender document against which the bid is being submitted and it is identical to the tender document appearing on the website/ e-tender portal.

b) The tenderer hereby covenants and declares that:

1. All the information, Documents, Photo copies of the Documents/ Certificates enclosed along with the Tender offer are correct.

2. If anything is found false and/or incorrect and/or reveals any suppression of fact at any time, BSNL reserves the right to debar our tender offer/ cancel the LOA/ Purchase/ work order if issued and forfeit the EMD/ SD/ Bill amount pending with BSNL. In addition, BSNL may debar the contractor from participation in its future tenders.

Date:.....

Signature of Tenderer

Place:

Name of Tenderer.....

Along with date & Seal

Annexure-G
MALICIOUS CODE CERTIFICATE

To,
Tendering Authority
BSNL

(a) This is to certify that the Hardware and the Software being offered, as part of the contract does not contain Embedded Malicious code that would activate procedures to:

(i) Inhibit the desired and designed function of the equipment.

(ii) Cause physical damage to the user or equipment during the exploitation.

(iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copy right and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

(Authorized Signatory) Signature:

Name:

Designation

Address::

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.

13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---